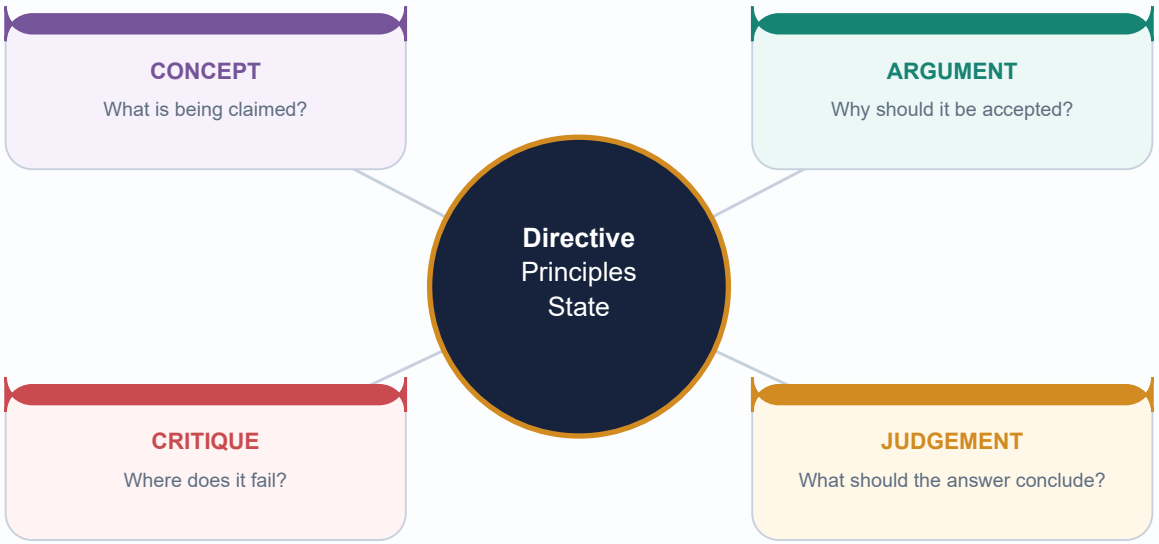
UPSC INDIAN POLITY

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains
Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth
Sources: Directive-Principles.md + 08_Directive-Principles.md
Learning cards: 59



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Basic (foundation) · **GS Paper:** GS-II

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Basic (foundation) · GS Paper: GS-II	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant (Part IV, Articles 36–51)
Dimension 3 □ = from source book · □□ = inference / standard knowledge	

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant (Part IV, Articles 36–51)

- □ = from source book · □□ = inference / standard knowledge

MUST-KNOW FACTS

1. = from source book · □□ = inference / standard knowledge

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Detail
Part of Constitution	□ Part IV (Articles 36–51)
Borrowed from	□ **Ireland** (1937) — Ireland copied from Spain
Called	□ "Novel features" (Ambedkar); "Conscience of the Constitution" (Granville Austin)
Nature	□ **Non-justiciable** (courts can't enforce)
Duty clause	□ Art 37 — "fundamental in governance"; State's duty to apply

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian Polity

INTRO & ORIGIN

 DPSP are **ideals/instructions to the State** while making laws and policies. They aim to build a **welfare state** and secure **social & economic democracy** (whereas FRs secure **political democracy**). Not legally enforceable, but morally & politically binding — the real force is **public opinion**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. DPSP are **ideals/instructions to the State** while making laws and policies. They aim to build a **welfare state** and secure **social & economic democracy** (whereas FRs secure **political democracy**). Not legally enforceable, but morally & politically binding — the real force is **public opinion**.

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · The 3 categories (Laxmikant's classification)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Category	Idea	Example articles
Socialistic	social-economic justice, welfare	38, 39, 39A, 41, 42, 43, 43A, 47
Gandhian	rural reconstruction	40 (panchayats), 43 (cottage industry), 43B (co-ops), 46, 47 (prohibition), 48 (cow slaughter)
Liberal-Intellectual	modern liberal state	44 (UCC), 45, 48 (agri), 48A (environment), 49, 50 (separate judiciary), 51 (world peace)

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → The 3 categories (Laxmikant's classification)

HIGH

Foundation · The 3 categories (Laxmikant's classification)

GS-II Indian Polity

INTRO & ORIGIN

 Mnemonic (Gandhian): **"PC-CoW"** → Panchayats, Cottage industry, Co-operatives,

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- Weaker-sections, alcohol prohibition, cow protection.

MEMORY HOOK

Mnemonic (Gandhian): "PC-CoW" → Panchayats, Cottage industry, Co-operatives,

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → The 3 categories (Laxmikant's classification)

HIGH

Foundation · High-frequency articles

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Art	Directive
40	Village **panchayats**
44	**Uniform Civil Code**
45	Early-childhood care & education (less than 6 yrs)
48A	Protect **environment**, forests, wildlife
50	**Separate judiciary from executive**
51	Promote **international peace**

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → High-frequency articles

HIGH

Foundation · Amendments that added DPSP

GS-II Indian Polity

INTRO & ORIGIN

 42nd (1976): substituted/recast Art 39(f), and inserted Arts 39A (legal aid), 43A (workers in management) and 48A (environment).

Foundation learning layer: concepts → constitutional detail → UPSC application.

AMENDMENTS THAT ADDED DPSP: RECALL MAP

Amendments that added DPSP

V

Dimension 1 42nd (1976): substituted/recast Art 39(f), and inserted Arts 39A (legal aid), 43A (workers in management) and 48A (environment).	**Dimension 2** 44th (1978): Art 38 — minimise inequalities.
Dimension 3 86th (2002): Art 45 changed → elementary education became FR (Art 21A).	**Dimension 4** 97th (2011): Art 43B — co-operative societies.

STATIC THEORY

- **44th (1978):** Art 38 — minimise inequalities.

- **86th (2002):** Art 45 changed → elementary education became FR (Art 21A).

- **97th (2011):** Art 43B — co-operative societies.

MUST-KNOW FACTS

1. 42nd (1976): substituted/recast Art 39(f), and inserted Arts 39A (legal aid), 43A (workers in management) and 48A (environment).

2. 44th (1978): Art 38 — minimise inequalities.

3. 86th (2002): Art 45 changed → elementary education became FR (Art 21A).

4. 97th (2011): Art 43B — co-operative societies.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Amendments that added DPSP

HIGH

Foundation · FR vs DPSP (one-line)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Fundamental Rights	Directive Principles
□ Justiciable	□ Non-justiciable
Political democracy	Social & economic democracy
Negative (limit State)	Positive (direct State to act)

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → FR vs DPSP (one-line)

HIGH

Foundation · Must-Know Facts (Prelims)

GS-II Indian Polity

INTRO & ORIGIN

□ DPSP = Articles **36–51**, Part IV; borrowed from **Ireland**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS (PRELIMS): RECALL MAP

Must-Know Facts (Prelims)

V

Dimension 1 □ DPSP = Articles 36–51, Part IV; borrowed from Ireland.	**Dimension 2** □ Non-justiciable (Art 37); no court enforcement.
Dimension 3 □ Art 44 = UCC; Art 40 = panchayats; Art 50 = separate judiciary.	**Dimension 4** □ Present position: Neither Part III nor Part IV enjoys abstract, unlimited supremacy. Parliament may

STATIC THEORY

- □ **Non-justiciable** (Art 37); no court enforcement.

- □ Art **44** = UCC; Art **40** = panchayats; Art **50** = separate judiciary.

- □ **Present position:** Neither Part III nor Part IV enjoys abstract, unlimited supremacy. Parliament may

- amend rights to pursue DPSP without damaging the **basic structure**, while the harmony and balance between the two Parts is itself basic structure (*Minerva Mills*, 1980). The surviving Art 31C shield is the specific exception for genuine Art 39(b)/(c) laws against Arts 14 and 19.

- □□ The full case-law spine (Champakam → Golaknath → Kesavananda → Minerva Mills), the named critics, Art 31C and the directives outside Part IV are all held **in this file** (§8.4–§8.10). *Advanced: optional extended historiography in advanced/08_Directive-Principles.md — not required for any mark.*

MUST-KNOW FACTS

1. DPSP = Articles **36–51**, Part IV; borrowed from **Ireland**.

2. Non-justiciable (Art 37); no court enforcement.

3. Art **44** = UCC; Art **40** = panchayats; Art **50** = separate judiciary.

4. Present position: Neither Part III nor Part IV enjoys abstract, unlimited supremacy. Parliament may

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Must-Know Facts (Prelims)

HIGH

Foundation · Answer architecture (10/15/20-mark support)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Answer architecture (10/15/20-mark support).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

*Purpose: DPSP answers succeed or fail on two things — the **FR–DPSP conflict spine** and **honest evidence of implementation**. Both are promoted here so the Basic file can carry a 10/15-mark GS-II answer and the routed NALSA demand without the Advanced companion.*

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Answer architecture (10/15/20-mark support)

HIGH

Foundation · 8.0 Direct Mains demands owned by this Core file

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of 8.0 Direct Mains demands owned by this Core file.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

2023 GS-II Q2 — "Entitlement to free legal aid and the role of NALSA" · Assess · 10 marks · 150 words. □ *Constitutional entitlement:* ***Art 39A*** *(added by the 42nd Amendment, 1976) directs the State to secure* ***equal justice and free legal aid****;* □□ *it is also read into* ***Art 21*** *as part of a fair procedure (Hussainara Khatoon 1979; M.H. Hoskot 1978).* □ *Statutory architecture: the* ***Legal Services Authorities Act, 1987*** *created a four-tier structure — **NALSA** (apex) → State Legal Services Authorities → District Legal Services Authorities → Taluk committees.* □ *NALSA's role: frame policy, provide free legal aid to eligible persons, and organise* ***Lok Adalats*** *(statutory, with civil-court status and* ***binding, non-appealable awards****), legal-awareness camps and legal-aid clinics.* □□ *Assess — achievements: mass dispute disposal through Lok Adalats, wide eligibility (SC/ST, women, children, persons with disability, persons in custody, low-income litigants), and decentralised reach.* □□ *Assess — limits: uneven quality of assigned counsel, low awareness, under-utilisation, and persistent pendency despite the machinery. Verdict:* □□ *free legal aid converts a non-justiciable DPSP into an operational entitlement, but delivery still lags the promise; the priority is quality and awareness, not new institutions.* ***Core routing supersedes the older advanced/08_Directive-Principles.md pointer for this demand.***

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.0 Direct Mains demands owned by this Core file

HIGH

Foundation · 8.1 Demand and directive map

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Demand family	Typical directive signals	Answer spine to use
Nature & justiciability	"Non-justiciable yet fundamental — discuss"	Art 37 text → moral/political sanction → interpretive & reasonableness use → verdict
FR–DPSP conflict	"Trace the harmonisation of FR and DPSP"	Champakam → 1st/24th/25th Amdts & Art 31C → Kesavananda → 42nd → Minerva Mills → present position
Implementation	"How far has the welfare-state goal been realised?"	Named laws/amendments per directive → outcomes → honest limits → verdict
Specific directive	"UCC / legal aid / panchayats — assess"	The Article → its statute/amendment → mechanism → limits → verdict
DPSP vs FR balance	"Two wheels of a chariot — evaluate"	Complementarity → primacy question → basic-structure balance (Minerva Mills)

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.1 Demand and directive map

HIGH

Foundation · 8.2 Qualified thesis options

GS-II Indian Polity

INTRO & ORIGIN

The DPSP are non-justiciable but not non-binding: Art 37 makes them "fundamental in the governance of the country", so their real sanction is political accountability rather than judicial enforcement.

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.2 QUALIFIED THESIS OPTIONS: RECALL MAP

8.2 Qualified thesis options

V

Dimension 1 The DPSP are non-justiciable but not non-binding: Art 37 makes them "fundamental in the governance of the country", so their real sanction is politica	**Dimension 2** The history of Part IV is the history of its reconciliation with Part III — from the subordination of Champakam to the "two wheels of a chariot" balan
Dimension 3 DPSP are best read as a directional compass, not a delivery guarantee: implementation is real (legal aid, panchayats, RTE, environment) but uneven, wh	**Dimension 4** Free legal aid shows the DPSP working at their best — a Part IV directive (Art 39A) reinforced by Art 21 and operationalised by statute (Legal Service

STATIC THEORY

- The history of Part IV is the history of its reconciliation with Part III — from the subordination of Champakam to the "two wheels of a chariot" balance of Minerva Mills, harmony rather than hierarchy is the settled constitutional position.

- DPSP are best read as a directional compass, not a delivery guarantee: implementation is real (legal aid, panchayats, RTE, environment) but uneven, which is the honest answer to any "how far realised" question.

- Free legal aid shows the DPSP working at their best — a Part IV directive (Art 39A) reinforced by Art 21 and operationalised by statute (Legal Services Authorities Act, 1987) into an actual entitlement.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.2 Qualified thesis options

HIGH

Foundation · 8.3 Mark-scaled structures

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Marks	Architecture	Evidence load
10	Thesis → the directive & its constitutional status → one statute/case → one limit → verdict	2–3 units, one named Article + one statute/case
15	Thesis → nature (Art 37) → FR–DPSP spine OR implementation → criticism → graded verdict	4–6 units incl. 2–3 cases/amendments
20	Thesis → philosophy & classification → conflict spine → implementation evidence → criticism/limits → present position → verdict	6–8 units across conflict + implementation

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.3 Mark-scaled structures

HIGH

Foundation · 8.4 Bank A — Nature and the FR–DPSP conflict spine

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Case / Amendment	Year	Exact proposition	Caution
□ *Champakam Dorairajan*	1951	FR prevail over DPSP; a DPSP cannot override a FR	Prompted the **1st Amendment (1951)** adding Art 15(4)
□ *Golaknath*	1967	Parliament cannot abridge FR even to implement DPSP	Reversed later by the 24th Amendment
□ 24th & 25th Amendments	1971	24th: Parliament can amend FR; 25th inserted **Art 31C** immunising laws for Art 39(b)/(c) from Art 14/19	—
□ *Kesavananda Bharati*	1973	Upheld the first part of Art 31C but struck the clause ousting judicial review (a basic feature)	—
□ 42nd Amendment	1976	Extended Art 31C protection to **all** DPSP	Struck down in part below
□ *Minerva Mills*	1980	The 42nd-Amdt extension is void; FR–DPSP **balance** is a basic feature ("two wheels of a chariot")	But Art 39(b)/(c) protection survives
□ *Unni Krishnan*	1993	Read the right to education into Art 21 in the light of Arts 41, 45, 46 (DPSP illuminating a FR)	Later given textual form by Art 21A (86th Amdt)
□ *Property Owners Association*	2024	The unamended Art 31C survives; not every private resource is a "material resource of the community" under Art 39(b)	Contextual inquiry (judgment of 5 Nov 2024)

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.4 Bank A — Nature and the FR–DPSP conflict spine

HIGH

Foundation · 8.4 Bank A — Nature and the FR–DPSP conflict spine

GS-II Indian Polity

INTRO & ORIGIN

□□ **Present position:** use **harmony, not abstract hierarchy**. Enforceable rights ordinarily control an

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- inconsistent ordinary law, but Parliament may amend rights to pursue DPSP without damaging basic structure; the surviving Art 31C specifically protects genuine Art 39(b)/(c) laws against Arts 14 and 19.

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.4 Bank A — Nature and the FR–DPSP conflict spine

HIGH

Foundation · 8.5 Bank B — Implementation evidence (with honest limits)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Directive (Article)	Delivery vehicle	Outcome / significance	Honest limit
□ Art 39A — equal justice & free legal aid	Legal Services Authorities Act, 1987; NALSA; Lok Adalats	Institutionalised free legal aid and mass dispute settlement	Uneven counsel quality; low awareness
□ Art 40 — village panchayats	**73rd Amendment (1992)** — Part IX	Constitutionalised Panchayati Raj, the direct institutional expression of Art 40	Devolution of funds/functions/functionaries still weak; the 74th Amendment separately constitutionalised municipalities but is not the textual implementation of Art 40
□ Art 45 → Art 21A — education	**86th Amendment (2002)**; **RTE Act, 2009**	Made elementary education a fundamental right	Quality and learning-outcome gaps persist
□ Art 43B — co-operatives	**97th Amendment (2011)**	Promotes voluntary, autonomous, democratic co-operatives	State-list overlap; governance issues
□ Art 47 — nutrition, public health, prohibition	Public-health and food-security programmes	Advances welfare-state commitments	Outcomes vary sharply across States
□ Art 48A — environment	Environmental statutes; read with Art 51A(g) & Art 21	Anchors environmental jurisprudence	Enforcement and compliance gaps

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.5 Bank B — Implementation evidence (with honest limits)

HIGH

Foundation · 8.5 Bank B — Implementation evidence (with honest limits)

GS-II Indian Polity

INTRO & ORIGIN

 Directives outside Part IV that carry equal weight: **Art 335** (SC/ST service claims consistent with efficiency), **Art 350-A** (mother-tongue instruction), **Art 351** (development of Hindi).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Directives outside Part IV that carry equal weight: **Art 335** (SC/ST service claims consistent with efficiency), **Art 350-A** (mother-tongue instruction), **Art 351** (development of Hindi).

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.5 Bank B — Implementation evidence (with honest limits)

HIGH

Foundation · 8.6 Constitutional mechanism, institutional incentives and consequences

GS-II Indian Polity

INTRO & ORIGIN

 Mechanism: DPSP are non-justiciable (Art 37) but bind the State politically; courts use them to interpret ambiguous statutes and to judge whether a restriction on a FR is "reasonable" under Art 14/19.

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.6 CONSTITUTIONAL MECHANISM, INSTITUTIONAL INCENTIVES AND CONSEQUENCES: RECALL MAP

8.6 Constitutional mechanism, institutional incentives and consequences

V

Dimension 1 Mechanism: DPSP are non-justiciable (Art 37) but bind the State politically; courts use them to interpret ambiguous statutes and to judge whether a	**Dimension 2** Incentive: because the sanction is electoral, governments implement DPSP selectively — visible welfare directives (education, legal aid, panchayats
Dimension 3 Who gains/loses: land reform, legal aid and reservation-linked directives redistribute toward the poor and backward classes; property and business	**Dimension 4** Consequence: the DPSP turned the Indian State from a "police state" into a welfare state in aspiration, and gave courts a text to expand socio-econ

STATIC THEORY

- □□ **Incentive:** because the sanction is electoral, governments implement DPSP selectively — visible welfare directives (education, legal aid, panchayats) advance faster than contested ones (UCC, prohibition).

- □□ **Who gains/loses:** land reform, legal aid and reservation-linked directives redistribute toward the poor and backward classes; property and business interests bore the cost, which is why Art 31C and the Ninth Schedule were needed to protect implementing laws.

- □□ **Consequence:** the DPSP turned the Indian State from a "police state" into a **welfare state** in aspiration, and gave courts a text to expand socio-economic rights through Art 21.

MUST-KNOW FACTS

1. Mechanism: DPSP are non-justiciable (Art 37) but bind the State politically; courts use them to interpret ambiguous statutes and to judge whether a restriction on a FR is "reasonable" under Art 14/19.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.6 Constitutional mechanism, institutional incentives and consequences

HIGH

Foundation · 8.7 Criticism, counter-argument and implementation constraints

GS-II Indian Polity

INTRO & ORIGIN

□ **No legal force:** critics called them "pious aspirations" (Ivor Jennings) and a "cheque payable when the bank permits" (K.T. Shah); counter — Art 37 gives them governance primacy and interpretive force.

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.7 CRITICISM, COUNTER-ARGUMENT AND IMPLEMENTATION CONSTRAINTS: RECALL MAP

8.7 Criticism, counter-argument and implementation constraints

V

Dimension 1 □ No legal force: critics called them "pious aspirations" (Ivor Jennings) and a "cheque payable when the bank permits" (K.T. Shah); counter — Art 37 g	**Dimension 2** □ Illogically arranged / conservative: N. Srinivasan (poor classification); Jennings (19th-century philosophy).
Dimension 3 □ Constitutional conflict: K. Santhanam — Centre–state and executive tensions.	**Dimension 4** □□ Resource and federal constraints: delivery depends on State finances and capacity, so the same directive yields very different outcomes across Stat

STATIC THEORY

- □ **Illogically arranged / conservative:** N. Srinivasan (poor classification); Jennings (19th-century philosophy).

- □ **Constitutional conflict:** K. Santhanam — Centre–state and executive tensions.

- □□ **Resource and federal constraints:** delivery depends on State finances and capacity, so the same directive yields very different outcomes across States.

- □□ **Contested directives:** UCC (Art 44) collides with legal pluralism; prohibition (Art 47) and cow-slaughter (Art 48) attract political and rights-based objections.

MUST-KNOW FACTS

1. No legal force: critics called them "pious aspirations" (Ivor Jennings) and a "cheque payable when the bank permits" (K.T. Shah); counter — Art 37 gives them governance primacy and interpretive force.

2. Illogically arranged / conservative: N. Srinivasan (poor classification); Jennings (19th-century philosophy).

3. Constitutional conflict: K. Santhanam — Centre–state and executive tensions.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.7 Criticism, counter-argument and implementation constraints

HIGH

Foundation · 8.7A Bank C — Article 44 and the Uniform Civil Code (the folder's owner for this demand) · Table 1.1

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Step in the argument	Named anchor	Mechanism / significance	Limitation or status caution
□ The directive itself	**Art 44** — the State "shall endeavour to secure for the citizens a uniform civil code throughout the territory of India"	Placed among the **liberal-intellectual** directives; it addresses **personal law** (marriage, divorce, maintenance, succession, adoption, guardianship), not criminal or contract law, which are already uniform	□ Non-justiciable under **Art 37** — no court can compel Parliament to enact a UCC
□ The constitutional tension	**Art 25–26** freedom of religion vs **Art 14/15** equality	Personal laws that differentiate by sex face an equality challenge; the defence invokes religious freedom and the **Art 29–30** cultural guarantee	□□ Art 25 is itself **subject to public order, morality, health and to the other provisions of Part III**, and **Art 25(2)(b)** expressly permits social-welfare and reform legislation — so the religious-freedom defence is textually bounded
□ The judicial prompts	**Mohd. Ahmed Khan v. Shah Bano Begum (1985)**, **Sarla Mudgal (1995)**, **John Vallamattom (2003)**	In each the Court decided the case on the statute before it and **additionally observed** that Art 44 remained unimplemented	□□ These are **observations urging the legislature**, not directions to enact a UCC — do **not** write that the Supreme Court "ordered" or "directed" a UCC
□ Reform without a UCC	**Shayara Bano v. Union of India (2017)** set aside instant triple talaq; the **Muslim Women (Protection of Rights on Marriage) Act, 2019** followed	Shows that **targeted statutory reform inside a personal-law system** can deliver the equality outcome a UCC is asked to deliver	□□ *Shayara Bano* invalidated a **practice**; it did not rule on the constitutionality of personal-law systems as a whole
□ Codification precedent	The **Hindu Code** statutes of the mid-1950s (marriage, succession, minority and guardianship, adoption and maintenance)	Proves that codification of one community's personal law is constitutionally and politically feasible, and is the standard example of a "step towards Art 44"	□□ It was **community-specific codification**, not a uniform code — do not present it as a partial UCC
□ Existing uniform option	The **Special Marriage Act, 1954**	Supplies a secular civil-marriage route to persons who satisfy the Act's statutory conditions; it is not accurately described as a route open only to, or automatically available to, “any two citizens”	□□ It is **opt-in** and does not itself create a comprehensive UCC
□ Sub-national implementation	**Goa** has a common family-law regime with exceptions; **Uttarakhand's UCC Act, 2024 commenced on 27 January 2025**	Personal law lies in **Concurrent List Entry 5**, so both Parliament and State legislatures can legislate subject to constitutional/federal rules	□□ Do not call Goa perfectly uniform or treat one State model as the constitutionally required national design

Step in the argument	Named anchor	Mechanism / significance	Limitation or status caution
□ Uttarakhand's **2026 amendment — current instrument**	The Governor promulgated an Amendment Ordinance on 27 January 2026; the official UCC portal now publishes **The Uniform Civil Code, Uttarakhand (Amendment) Act, 2026**, GO dated **7 April 2026**	The succession from Ordinance to Act is a clean Art 213 illustration and shows post-enactment correction in a new codification	□ Cite the operative **Amendment Act**, not the Ordinance as the current instrument. Use the official Act/Gazette for fine detail; do not invent litigation outcomes or statistics

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.7A Bank C — Article 44 and the Uniform Civil Code (the folder's owner for this demand)

HIGH

Foundation · 8.7A Bank C — Article 44 and the Uniform Civil Code (the folder's owner for this demand) · Table 1.2

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Step in the argument	Named anchor	Mechanism / significance	Limitation or status caution
□□ Law Commission position	The **21st Law Commission's consultation paper (2018)** took the view that a uniform civil code was **not necessary or desirable at that stage** and favoured reforming discriminatory practices within each personal law; the **22nd Law Commission** reopened public consultation on the subject	Gives the answer a non-partisan institutional voice on both sides	□□ A Law Commission paper is **advice, not law**; do not attribute a final recommendation to the 22nd Commission unless verified

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.7A Bank C — Article 44 and the Uniform Civil Code (the folder's owner for this demand)

HIGH

Foundation · 8.7A Bank C — Article 44 and the Uniform Civil Code (the folder's owner for this demand)

GS-II Indian Polity

INTRO & ORIGIN

□□ **Ownership note:** Art 44 is a Directive Principle, so this Core file owns the constitutional

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.7A BANK C — ARTICLE 44 AND THE UNIFORM CIVIL CODE (THE FOLDER'S OWNER FOR THIS DEMAND): RECALL MAP

8.7A Bank C — Article 44 and the Uniform Civil Code (the folder's owner for this demand)

V

Dimension 1 □□ Ownership note: Art 44 is a Directive Principle, so this Core file owns the constitutional	**Dimension 2** architecture of the UCC demand. The social and community-impact dimension is developed in
Dimension 3 ../../Indian-Society/ and ../../Social-Justice/; the religion-rights half (Art 25–28) is in	**Dimension 4** Fundamental-Rights.md. Nothing paper-essential for a Polity answer is left outside this section.

STATIC THEORY

- architecture of the UCC demand. The **social and community-impact** dimension is developed in

- ../../Indian-Society/ and ../../Social-Justice/; the **religion-rights half** (Art 25–28) is in

- Fundamental-Rights.md. Nothing paper-essential for a Polity answer is left outside this section.

- **Two-sided verdict scaffold (use for any "Critically examine"/"Discuss" UCC demand):** □□ *Article 44 states a constitutional goal that equality under Articles 14 and 15 independently supports; but because it is non-justiciable and touches identity, the constitutionally safer route India has actually travelled is reform-within-personal-law — Shah Bano to Shayara Bano to the 2019 Act — and a uniform code will be legitimate only when it is arrived at through consultation rather than imposed as a majoritarian settlement.*

- □ **Answer discipline:** separate **(i)** what Art 44 says, **(ii)** what the courts have actually held versus merely observed, **(iii)** what has already been achieved by targeted reform, and **(iv)** what remains contested. Answers that collapse these four registers lose marks even when the facts are right.

MEMORY HOOK

Answer discipline: separate (i) what Art 44 says, (ii) what the courts have actually held versus merely observed, (iii) what has already been achieved by targeted reform, and (iv) what remains contested. Answers that collapse these four registers lose marks even when the facts are right.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.7A Bank C — Article 44 and the Uniform Civil Code (the folder's owner for this demand)

HIGH

Foundation · 8.8 Verdict scaffolds

GS-II Indian Polity

INTRO & ORIGIN

Justiciability demands: □□ *DPSP are non-justiciable by design, but Art 37 makes them the moral and political charter of governance; their weakness in court is the price of flexibility for a resource-scarce State.*

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.8 VERDICT SCAFFOLDS: RECALL MAP

8.8 Verdict scaffolds

V

Dimension 1 Justiciability demands: □□ DPSP are non-justiciable by design, but Art 37 makes them the moral and political charter of governance; their weakness in	**Dimension 2** FR–DPSP conflict demands: □□ The journey from Champakam to Minerva Mills settles the matter — FR retain primacy, yet the balance between Parts III and
Dimension 3 Implementation demands: □□ The welfare-state goal is partly realised — legal aid, panchayats, RTE and environmental protection are concrete gains — bu	

STATIC THEORY

- **FR–DPSP conflict demands:** □□ *The journey from Champakam to Minerva Mills settles the matter — FR retain primacy, yet the balance between Parts III and IV is itself a basic feature that neither can be sacrificed to.*

- **Implementation demands:** □□ *The welfare-state goal is partly realised — legal aid, panchayats, RTE and environmental protection are concrete gains — but uneven delivery means the DPSP remain a compass the State has followed unevenly.*

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.8 Verdict scaffolds

HIGH

Foundation · 8.9 Prelims close-option distinctions · Part 1

GS-II Indian Polity

INTRO & ORIGIN

Routed objective demands in this file's generated blocks (each answered substantively):

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.9 PRELIMS CLOSE-OPTION DISTINCTIONS: RECALL MAP

8.9 Prelims close-option distinctions

V

Dimension 1 Routed objective demands in this file's generated blocks (each answered substantively):	**Dimension 2** □ 2025 Q55 — provisions matched to their Part: FR = Part III (Art 12–35); DPSP = Part IV (Art 36–51); FD = Part IV-A (Art 51A). Note Art 21A is a FR (
Dimension 3 □ 2020 Q5 — separation of judiciary from executive: Art 50 (DPSP, Part IV).	**Dimension 4** □ 2020 Q8 — UDHR ideals in Preamble/DPSP/FD: □□ the DPSP (socio-economic ideals) and the Fundamental Duties echo the ideals of the UDHR (1948) — digni

STATIC THEORY

- □ **2025 Q55 — provisions matched to their Part:** FR = **Part III (Art 12–35)**; DPSP = **Part IV (Art 36–51)**; FD = **Part IV-A (Art 51A)**. Note Art 21A is a FR (Part III) while Art 45/46 are DPSP.

- □ **2020 Q5 — separation of judiciary from executive: Art 50** (DPSP, Part IV).

- □ **2020 Q8 — UDHR ideals in Preamble/DPSP/FD:** □□ the DPSP (socio-economic ideals) and the Fundamental Duties echo the ideals of the **UDHR (1948)** — dignity, justice, fraternity; a qualitative resonance, not an article-by-article incorporation.

- □ **2020 Q9 — free legal aid eligibility (Legal Services Authorities Act):** eligible categories include SC/ST, women, children, persons with disability, victims of trafficking, industrial workmen, persons in custody, and persons whose income is below the ceiling **notified by the appropriate government** (which varies by State).

- □ **2020 Q12 — Part declaring the Welfare-State ideal: Part IV (DPSP)** — especially Art 38/39.

- □ **2020 Q18 — Part IV enforceability & legislative influence: non-justiciable** (Art 37) yet "fundamental in governance"; they guide legislation and are used by courts to interpret laws and test the reasonableness of FR restrictions.

MUST-KNOW FACTS

1. 2025 Q55 — provisions matched to their Part: FR = **Part III (Art 12–35)**; DPSP = **Part IV (Art 36–51)**; FD = **Part IV-A (Art 51A)**. Note Art 21A is a FR (Part III) while Art 45/46 are DPSP.

2. 2020 Q5 — separation of judiciary from executive: Art 50 (DPSP, Part IV).

3. 2020 Q8 — UDHR ideals in Preamble/DPSP/FD: □□ the DPSP (socio-economic ideals) and the Fundamental Duties echo the ideals of the **UDHR (1948)** — dignity, justice, fraternity; a qualitative resonance, not an article-by-article incorporation.

4. 2020 Q9 — free legal aid eligibility (Legal Services Authorities Act): eligible categories include SC/ST, women, children, persons with disability, victims of trafficking, industrial workmen, persons in custody, and persons whose income is below the ceiling **notified by the appropriate government** (which varies by State).

5. 2020 Q12 — Part declaring the Welfare-State ideal: Part IV (DPSP) — especially Art 38/39.

6. 2020 Q18 — Part IV enforceability & legislative influence: non-justiciable (Art 37) yet "fundamental in governance"; they guide legislation and are used by courts to interpret laws and test the reasonableness of FR restrictions.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.9 Prelims close-option distinctions

HIGH

Foundation · 8.9 Prelims close-option distinctions · Part 2

GS-II Indian Polity

INTRO & ORIGIN

 2021 Q91 — provision against concentration of wealth: Art 39(c) — the economic system should not result in the concentration of wealth and means of production to the common detriment.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- Standard confusion pairs:

- FR (justiciable, Part III) vs DPSP (non-justiciable, Part IV).

- Gandhian directives (Art 40 panchayats, 43 cottage industry, 43B co-ops, 46, 47, 48) vs Liberal-intellectual (Art 44 UCC, 45, 48A, 50, 51).

- Art 39(b) (equitable distribution of material resources) vs Art 39(c) (no concentration of wealth).

- Source: DPSP from **Ireland** (which drew from Spain) — **not** the USA.

MUST-KNOW FACTS

1. 2021 Q91 — provision against concentration of wealth: Art 39(c) — the economic system should not result in the concentration of wealth and means of production to the common detriment.

2. FR (justiciable, Part III) vs DPSP (non-justiciable, Part IV).

3. Gandhian directives (Art 40 panchayats, 43 cottage industry, 43B co-ops, 46, 47, 48) vs Liberal-intellectual (Art 44 UCC, 45, 48A, 50, 51).

4. Art 39(b) (equitable distribution of material resources) vs Art 39(c) (no concentration of wealth).

5. Source: DPSP from **Ireland** (which drew from Spain) — **not** the USA.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.9 Prelims close-option distinctions

HIGH

Foundation · 8.10 Factual-risk and current-status controls · Part 1

GS-II Indian Polity

NEWS TRIGGER

Do **not** state DPSP are justiciable or enforceable by courts — **Art 37** makes them non-justiciable. Do **not** state DPSP were borrowed from the USA — they are borrowed from **Ireland** (Ireland from Spain). Do **not** state *Champakam* gave DPSP primacy — it gave **FR** primacy over DPSP.

INTRO & ORIGIN

Do **not** state *Minerva Mills* struck down all of Art 31C — it struck only the **42nd-Amendment extension** to all DPSP; the **Art 39(b)/(c)** protection survives.

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.10 FACTUAL-RISK AND CURRENT-STATUS CONTROLS: RECALL MAP

8.10 Factual-risk and current-status controls

V

Dimension 1 Do not state Minerva Mills struck down all of Art 31C — it struck only the 42nd-Amendment extension to all DPSP; the Art 39(b)/(c) protection survives	**Dimension 2** Do not state NALSA is a constitutional body — it is statutory (Legal Services Authorities Act, 1987).
Dimension 3 Do not state a single national income ceiling for legal-aid eligibility — the ceiling is notified by the appropriate government and varies by State.	**Dimension 4** □ On Art 39(b): as of the Property Owners Association v. State of Maharashtra judgment (5 November 2024), not every privately owned asset is automatic

STATIC THEORY

- Do **not** state NALSA is a constitutional body — it is **statutory** (Legal Services Authorities Act, 1987).

- Do **not** state a single national income ceiling for legal-aid eligibility — the ceiling is **notified by the appropriate government** and varies by State.

- □ On Art 39(b): as of the *Property Owners Association v. State of Maharashtra* judgment (**5 November 2024**), not every privately owned asset is automatically a "material resource of the community"; the inquiry is contextual.

- □ **UCC status discipline, dated 28 August 2026 (§8.7A):** Uttarakhand's UCC commenced on

- **27 January 2025**. The 27 January 2026 Amendment Ordinance was succeeded by the officially published **Uniform Civil Code, Uttarakhand (Amendment) Act, 2026**, GO dated **7 April 2026**. Cite the Act as the current amending instrument, and do not invent a litigation outcome, penalty figure or implementation statistic.

- □□ Do **not** write that any court has "ordered" or "directed" a Uniform Civil Code; the judicial record consists of **observations urging the legislature**, not mandamus.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.10 Factual-risk and current-status controls

HIGH

Foundation · 8.10 Factual-risk and current-status controls · Part 2

GS-II Indian Polity

INTRO & ORIGIN

□ Status as of **28 August 2026**: the Part III–Part IV harmony/basic-structure formulation and the

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- surviving Art 31C shield remain controlling; recheck for any later ruling on Art 31C.

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025 -→

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → 8.10 Factual-risk and current-status controls

HIGH

Foundation · Recent PYQ Integration (2024-2025)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2025	Prelims GS-I	55	Constitutional provisions matched to their Part (Directive Principles / Fundamental Duties / Fundamental Rights)	Objective question; official Set-A key available locally, answer not inferred	Key available locally (official Set-A answer key present); answer not recorded here	Cover the named fact/concept and its likely statement-level distinctions.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Recent PYQ Integration (2024-2025)

HIGH

Foundation · Recent PYQ Integration (2024-2025)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Recent PYQ Integration (2024-2025).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *2024-2025 question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-PRELIMS-2024-2025.md.* ***Answer-key rule:*** *The official 2024-2025 Prelims Set-A keys are present in the repository and CSAT Set-A keys are supplied; even so, no option or answer is recorded or inferred in this integration.* ***Years represented:*** *2025* ***Paper(s):*** *Prelims GS-I* ***Routed question demands:*** *1*

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Recent PYQ Integration (2024-2025)

HIGH

Foundation · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Constitutional provisions matched to their Part (Directive Principles / Fundamental Duties / Fundamental Rights)

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Constitutional provisions matched to their Part (Directive Principles / Fundamental Duties / Fundamental Rights)	**Dimension 2** This block integrates the 2024-2025 examinable demand and paper metadata. It is kept separate from the 2018-2023 block and does not convert an unkeyed
Dimension 3 less than !-- END GENERATED PYQ INTEGRATION: 2024-2025 -→	**Dimension 4** less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -→

STATIC THEORY

- This block integrates the 2024-2025 examinable demand and paper metadata. It is kept separate from the 2018-2023 block and does not convert an unkeyed/answer-free objective question into a solved answer.

- less than !-- END GENERATED PYQ INTEGRATION: 2024-2025 -→

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -→

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2020	Prelims GS-I	5	Separation of judiciary from executive constitutional source	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2020	Prelims GS-I	8	UDHR principles in Preamble DPSP and Fundamental Duties	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2020	Prelims GS-I	9	Legal Services Authorities free legal aid eligibility criteria	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2020	Prelims GS-I	12	Constitution part declaring ideal of Welfare State	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2020	Prelims GS-I	18	Directive Principles Part IV enforceability and legislative influence	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2021	Prelims GS-I	91	Constitutional provision against concentration of wealth	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Historical PYQ Integration (2018-2023).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *Question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-PRELIMS-2018-2023.md.* ***Answer-key rule:*** *The official 2018-2023 Prelims/CSAT keys are not held locally; no option or answer has been inferred.* ***Years represented:*** *2020, 2021* ***Paper(s):*** *Prelims GS-I* ***Routed question demands:*** *6*

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · What this owner must now support · Part 1

GS-II Indian Polity

INTRO & ORIGIN

Separation of judiciary from executive constitutional source

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Separation of judiciary from executive constitutional source	**Dimension 2** UDHR principles in Preamble DPSP and Fundamental Duties
Dimension 3 Legal Services Authorities free legal aid eligibility criteria	**Dimension 4** Constitution part declaring ideal of Welfare State

STATIC THEORY

- UDHR principles in Preamble DPSP and Fundamental Duties

- Legal Services Authorities free legal aid eligibility criteria

- Constitution part declaring ideal of Welfare State

- Directive Principles Part IV enforceability and legislative influence

- Constitutional provision against concentration of wealth

- The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · What this owner must now support · Part 2

GS-II Indian Polity

INTRO & ORIGIN

less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -->

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Semantic-completeness ownership and PYQ control

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Semantic-completeness ownership and PYQ control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Exact text first: *Part IV contains Articles 36-51. Article 36 imports the Part III definition of State; Article 37 denies court enforcement while making the principles fundamental in governance and imposing a State duty to apply them in making laws.* ***Complete article map:*** *retain every clause of Articles 38-39, then Articles 39A, 40, 41, 42, 43, 43A, 43B, 44, 45, 46, 47, 48, 48A, 49, 50 and 51. Textbook socialistic, Gandhian and liberal-intellectual groupings are aids, not constitutional labels, and overlapping placement must be acknowledged.* ***Amendment control:*** *the 42nd Amendment substituted Article 39(f) and inserted Articles 39A, 43A and 48A; the 44th added Article 38(2); the 86th recast Article 45 while inserting Article 21A and Article 51A(k); the 97th inserted Article 43B.* ***FR-DPSP spine:*** *Champakam, the First Amendment, Golak Nath, the 24th and 25th Amendments, Kesavananda Bharati, the 42nd Amendment and Minerva Mills establish harmony and balance rather than unlimited priority for either Part.* ***Article 31C present law:*** *Property Owners Association (5 November 2024) confirms survival of the original shield for genuine Article 39(b)/(c) laws against Articles 14 and 19; nexus review and basic-structure review remain, and not every private resource is automatically a material resource of the community.* ***Implementation:*** *distinguish constitutional direction from delivery through legislation and institutions. Article 39A connects to the Legal Services Authorities Act, NALSA and Lok Adalats; Article 40 to Panchayats; Articles 41/45 to education; Articles 42-43A to labour; Article 48A to environmental law.* ***Current UCC control:*** *Article 44 is non-justiciable; courts have urged reform but have not ordered Parliament to enact a UCC. Uttarakhand's 2024 Act commenced on 27 January 2025; the Amendment Act published 7 April 2026 supersedes the January 2026 Ordinance.* ***Four-ledger hostile audit:*** *exact Part IV text, indispensable welfare-state prerequisites, textbook classifications and every routed 2018-2026 PYQ were checked for amendment history, case holdings, implementation and current status.* ***Boundary and PYQs:*** *Topic 07 owns detailed rights doctrine and Topic 10 basic structure; this owner supplies the reconciliation needed for DPSP answers. Direct NALSA and routed objective demands retain exact metadata and key status.*

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Semantic-completeness ownership and PYQ control

HIGH

Advanced · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant, Part IV (direct check of the local Sixth Revised Edition PDF).
Dimension 3 □ = directly from the book · □□ = inference / standard case law.	**Dimension 4** Companion: basic/Directive-Principles.md.

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant, Part IV (direct check of the local Sixth Revised Edition PDF).

- □ = directly from the book · □□ = inference / standard case law.

- *Companion: basic/Directive-Principles.md.*

MUST-KNOW FACTS

1. = directly from the book · □□ = inference / standard case law.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · Source, meaning & features · Part 1

GS-II Indian Polity

INTRO & ORIGIN

□ DPSP are in **Part IV, Art 36–51**. Borrowed from the **Irish Constitution of 1937** (Ireland copied from **Spain**). Ambedkar: "**novel features**." DPSP + FR = philosophy & **soul** of the Constitution; Granville Austin called them the "**Conscience of the Constitution**."

Advanced learning layer: concepts → constitutional detail → UPSC application.

SOURCE, MEANING & FEATURES: RECALL MAP

Source, meaning & features

V

Dimension 1 □ DPSP are in Part IV, Art 36–51. Borrowed from the Irish Constitution of 1937 (Ireland copied from Spain). Ambedkar: "novel features." DPSP + FR = ph	**Dimension 2** Features (5):
Dimension 3 □ Ideals the State keeps in mind while framing policy/law. Art 36: "State" = same meaning as	**Dimension 4** Part III (legislative + executive organs of Centre & states, local & public authorities).

STATIC THEORY

- **Features (5):**

- □ Ideals the State keeps in mind while framing policy/law. **Art 36:** "State" = same meaning as

- Part III (legislative + executive organs of Centre & states, local & public authorities).

- □ Resemble the "**Instrument of Instructions**" in the **Govt of India Act, 1935** (Ambedkar) —

- only difference: now addressed to legislature & executive.

- □ Comprehensive economic-social-political programme → embody a **welfare state**, not a police state.

MUST-KNOW FACTS

1. DPSP are in **Part IV, Art 36–51**. Borrowed from the **Irish Constitution of 1937** (Ireland copied from **Spain**). Ambedkar: "**novel features**." DPSP + FR = philosophy & **soul** of the Constitution; Granville Austin called them the "**Conscience of the Constitution**."

2. Ideals the State keeps in mind while framing policy/law. **Art 36:** "State" = same meaning as

3. Resemble the "**Instrument of Instructions**" in the **Govt of India Act, 1935** (Ambedkar) —

4. Comprehensive economic-social-political programme → embody a **welfare state**, not a police state.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Source, meaning & features

HIGH

Advanced · Source, meaning & features · Part 2

GS-II Indian Polity

INTRO & ORIGIN

□ **Non-justiciable** — not enforceable by courts (**Art 37**), yet **"fundamental in governance"**

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- and the State's **duty** to apply in making laws.

- □ Help courts judge constitutional validity — a law giving effect to a DPSP may be deemed

- "reasonable" under **Art 14/19** and saved from unconstitutionality.

MUST-KNOW FACTS

1. Non-justiciable — not enforceable by courts (**Art 37**), yet **"fundamental in governance"**

2. Help courts judge constitutional validity — a law giving effect to a DPSP may be deemed

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Source, meaning & features

HIGH

Advanced · Classification (book: 3 categories — Constitution itself gives none)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Classification (book: 3 categories — Constitution itself gives none).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Classification (book: 3 categories — Constitution itself gives none)

HIGH

Advanced · □ Socialistic Principles (welfare/social-economic justice)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Art	Directive
□ 38	Welfare of people via a just social order; **minimise inequalities** in income, status, facilities, opportunities
□ 39	(a) adequate livelihood; (b) equitable distribution of material resources; (c) prevent wealth concentration; (d) **equal pay for equal work** (men & women); (e) protect health of workers & children; (f) healthy development of children
□ 39A	Equal justice & **free legal aid** to the poor
□ 41	Right to work, education, public assistance (unemployment, old age, sickness, disablement)
□ 42	Just & humane work conditions + **maternity relief**
□ 43	**Living wage**, decent standard of life, social/cultural opportunities for workers
□ 43A	**Workers' participation** in management of industries
□ 47	Raise nutrition, standard of living & **public health**

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → □ Socialistic Principles (welfare/social-economic justice)

HIGH

Advanced · □ Gandhian Principles (reconstruction programme)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Art	Directive
□ 40	Organise **village panchayats** as units of self-government
□ 43	Promote **cottage industries** (individual/co-operative) in rural areas
□ 43B	Promote **co-operative societies** (voluntary, autonomous, democratic, professionally managed)
□ 46	Promote educational & economic interests of **SCs, STs & weaker sections**
□ 47	**Prohibit intoxicating drinks & drugs** injurious to health
□ 48	Prohibit slaughter of **cows, calves, milch & draught cattle**; improve breeds

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → □ Gandhian Principles (reconstruction programme)

HIGH

Advanced · □ Liberal-Intellectual Principles

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Art	Directive
□ 44	**Uniform Civil Code** throughout India
□ 45	Early-childhood care & education for children **until age 6** (post-86th Amdt)
□ 48	Organise agriculture & animal husbandry on modern scientific lines
□ 48A	**Protect environment**, forests & wildlife
□ 49	Protect **monuments/places/objects** of national importance
□ 50	**Separate judiciary from executive**
□ 51	Promote **international peace & security**; respect international law & treaties; encourage **arbitration** of disputes

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → □ Liberal-Intellectual Principles

HIGH

Advanced · □ Liberal-Intellectual Principles

GS-II Indian Polity

INTRO & ORIGIN

□ Trap-buster: **Art 39A (legal aid), 43A (workers in management), 48A (environment)** are

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- **socialistic/liberal but were ADDED by 42nd Amdt** — don't confuse "new" with a separate category.

MEMORY HOOK

Trap-buster: Art 39A (legal aid), 43A (workers in management), 48A (environment) are

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → □ Liberal-Intellectual Principles

HIGH

Advanced · New DPSP added by amendments

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Amendment	Added
□ **42nd (1976)**	**Substituted/recast 39(f)**; inserted **39A** (free legal aid), **43A** (workers in management) and **48A** (environment/forests/wildlife)
□ **44th (1978)**	Art **38** minimise inequalities in income, status, facilities & opportunities
□ **86th (2002)**	Changed **Art 45** (now early-childhood less than 6) → made elementary education a FR under **Art 21A**
□ **97th (2011)**	Art **43B** — promotion of **co-operative societies**

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → New DPSP added by amendments

HIGH

Advanced · Sanction behind DPSP

GS-II Indian Polity

INTRO & ORIGIN

□ **Sir B.N. Rau** recommended splitting rights into justiciable (→ Part III) & non-justiciable (→ Part IV); Drafting Committee accepted. Real force = **political / public opinion** (Ambedkar: electorate will hold govt to account). Made non-justiciable because: (1) insufficient financial resources; (2) vast diversity & backwardness; (3) new State needed freedom to decide order/time/mode.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Sir B.N. Rau recommended splitting rights into justiciable (→ Part III) & non-justiciable (→ Part IV); Drafting Committee accepted. Real force = **political / public opinion** (Ambedkar: electorate will hold govt to account). Made non-justiciable because: (1) insufficient financial resources; (2) vast diversity & backwardness; (3) new State needed freedom to decide order/time/mode.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Sanction behind DPSP

HIGH

Advanced · Criticism (named critics — high PYQ value)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Ground	Critics & phrases
□ No legal force	**K.T. Shah** — "pious superfluities," "cheque payable when bank permits"; **T.T. Krishnamachari** — "veritable dustbin of sentiments"; **K.C. Wheare** — "manifesto of aims and aspirations," "moral homily"; **Ivor Jennings** — "pious aspirations"
□ Illogically arranged	**N. Srinivasan** — not properly classified/logically arranged
□ Conservative	**Ivor Jennings** — 19th-century England philosophy; "Fabian Socialism without the socialism"
□ Constitutional conflict	**K. Santhanam** — Centre–state, President–PM, Governor–CM

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Criticism (named critics — high PYQ value)

HIGH

Advanced · Utility (defenders)

GS-II Indian Polity

INTRO & ORIGIN

□ **L.M. Singhvi** — "life-giving provisions"; **M.C. Chagla** — full implementation = "heaven on earth"; **Ambedkar** — goal = "**economic democracy**" (vs political democracy); **Granville Austin** — further the "social revolution"; **B.N. Rau** — "moral precepts… educative value." **M.C. Setalvad**: DPSP act as Instrument of Instructions, beacon-lights to courts, background to State action, and amplify the Preamble.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. L.M. Singhvi — "life-giving provisions"; **M.C. Chagla** — full implementation = "heaven on earth"; **Ambedkar** — goal = "**economic democracy**" (vs political democracy); **Granville Austin** — further the "social revolution"; **B.N. Rau** — "moral precepts… educative value." **M.C. Setalvad**: DPSP act as Instrument of Instructions, beacon-lights to courts, background to State action, and amplify the Preamble.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Utility (defenders)

HIGH

Advanced · FR vs DPSP conflict — the case-law spine (highest yield)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Case / Amendment	Year	Ruling
Champakam Dorairajan	1951	**FR prevail**; DPSP subsidiary to FR; but FR amendable → led to 1st, 4th, 17th Amdts
Golaknath	1967	Parliament **cannot** abridge FR (FR "sacrosanct") → FR can't be amended even for DPSP
24th & 25th Amdt	1971	24th: Parliament **can** amend FR. 25th: inserted **Art 31C** — (1) laws implementing **Art 39(b)&(c)** immune from Art 14/19/31 challenge; (2) such laws non-questionable in court
Kesavananda Bharati	1973	Struck down **2nd provision** of 31C (judicial review = basic feature); **1st provision valid**
42nd Amdt	1976	Extended 31C to **ALL** DPSP (not just 39 b,c) → primacy of DPSP over Art 14,19,31
Minerva Mills	1980	Struck down that 42nd-Amdt extension; harmony and balance between Parts III and IV is **basic structure**. The surviving Art 31C is a specific shield for genuine 39(b)/(c) laws against Arts 14 and 19
Property Owners Association	2024	Nine-judge Bench confirmed that the unamended Art 31C survives. Art 39(b) can cover some privately owned resources, but not all private property automatically; the inquiry is contextual.

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → FR vs DPSP conflict — the case-law spine □ (highest yield)

HIGH

Advanced · FR vs DPSP conflict — the case-law spine □ (highest yield)

GS-II Indian Polity

INTRO & ORIGIN

□ **Present position:** do not assert abstract supremacy of either Part. Enforceable rights ordinarily control inconsistent ordinary law, but Parliament may amend rights to pursue DPSP without damaging basic structure; Part III-Part IV harmony itself is basic structure. Art 31C's surviving 39(b)/(c) shield is the defined exception.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Present position: do not assert abstract supremacy of either Part. Enforceable rights ordinarily control inconsistent ordinary law, but Parliament may amend rights to pursue DPSP without damaging basic structure; Part III-Part IV harmony itself is basic structure. Art 31C's surviving 39(b)/(c) shield is the defined exception.

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → FR vs DPSP conflict — the case-law spine □ (highest yield)

HIGH

Advanced · FR vs DPSP — distinction (Table 8.1)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Fundamental Rights	Directive Principles
Negative (prohibit State)	Positive (require State action)
Justiciable	Non-justiciable
Political democracy	**Social & economic** democracy
Legal sanctions	Moral & political sanctions
Auto-enforced (no legislation)	Need legislation to implement
Court declares violating law void	Court can't void, but can **uphold** a law made to give effect to a directive

MAINS ANGLE

STUDY LINK
Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → FR vs DPSP — distinction (Table 8.1)

HIGH

Advanced · Implementation (schemes/laws — Mains fodder)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Implementation (schemes/laws — Mains fodder).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

 *Planning Commission 1950 → **NITI Aayog 2015**; land reforms (abolition of intermediaries, tenancy reform, ceilings, surplus redistribution, co-operative farming); labour laws (Minimum Wages 1948, Payment of Wages 1936, Bonus 1965, Contract Labour 1970, Child Labour 1986→renamed 2016, Bonded Labour 1976, Factories 1948, ID Act 1947); Maternity Benefit 1961 & Equal Remuneration 1976; nationalisation (LIC 1956, 14 banks 1969, general insurance 1971, Privy Purses abolished 1971); **Legal Services Authorities Act 1987** (Lok Adalat — statutory, civil-court status, binding awards).*

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Implementation (schemes/laws — Mains fodder)

HIGH

Advanced · Directives outside Part IV (non-justiciable but equally weighted)

GS-II Indian Polity

INTRO & ORIGIN

 Art 335 (Part XVI) — claims of **SC/ST to services** (consistent with efficiency of admin); **Art 350-A** (Part XVII) — **mother-tongue instruction** at primary stage for linguistic minorities; **Art 351** (Part XVII) — Union's duty to **develop & spread Hindi**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Art 335 (Part XVI) — claims of **SC/ST to services** (consistent with efficiency of admin); **Art 350-A** (Part XVII) — **mother-tongue instruction** at primary stage for linguistic minorities; **Art 351** (Part XVII) — Union's duty to **develop & spread Hindi**.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Directives outside Part IV (non-justiciable but equally weighted)

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

rejected by the nine-judge Bench in *Property Owners Association* (5 Nov 2024).

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: DPSP borrowed from USA

CORRECT: Ireland (Ireland ← Spain).

WRONG: DPSP are justiciable

CORRECT: non-justiciable (Art 37).

WRONG: Champakam gave DPSP primacy

CORRECT: gave **FR** primacy.

WRONG: Minerva Mills struck down all of Art 31C

CORRECT: only the **42nd-Amdt extension**; 39(b)&(c) protection stands.

WRONG: Art 39(b) automatically converts every private asset into a community resource

CORRECT:

WRONG: Art 44 (UCC) is Gandhian

CORRECT: liberal-intellectual; Art 40 (panchayats) is Gandhian.

WRONG: Free legal aid (39A) & environment (48A) were original

CORRECT: added by 42nd Amdt.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced · PYQ / CA anchors

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of PYQ / CA anchors.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Recurrent Prelims: which article is which category; amendment that added a DPSP; case-law sequence. Live-search: UCC debates (Uttarakhand UCC), workers'-participation/labour codes, cow-slaughter law challenges, free legal aid & Lok Adalat expansion.

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → PYQ / CA anchors

HIGH

Advanced · Mains angles

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"DPSP are the conscience of the Constitution but a cheque payable when resources permit" — discuss. Harmonious construction of FR & DPSP — from Champakam to Minerva Mills. UCC (Art 44): constitutional mandate vs pluralism. DPSP as the roadmap to a welfare state — how far realised? less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -->

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Mains angles

HIGH

Advanced · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2023	GS-II	2	Entitlement to free legal aid and the role of NALSA	Assess · 10 marks · 150 words	Routed to owning topic; word limit taken from the instruction block	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Advanced · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Historical PYQ Integration (2018-2023).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *Question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md.* ***Years represented:*** *2023* ***Paper(s):*** *GS-II* ***Routed question demands:*** *1*

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Advanced · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Entitlement to free legal aid and the role of NALSA

Advanced learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Entitlement to free legal aid and the role of NALSA	**Dimension 2** The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not cl
Dimension 3 less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→	

STATIC THEORY

- The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

- less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

MAINS ANGLE

STUDY LINK

Directive Principles of State Policy (Articles 36–51) — ADVANCED / COMPLETE → What this owner must now support

End of Register Notes - UPSC Agent / Copilot CLI